

Adriel Rodriguez v. Sierra Vista Regional Medical Center, et al., 24CV-0659

Hearing: Motion to Quash Subpoena

Date: September 23, 2026

TENTATIVE RULING

Adriel Rodriguez (Plaintiff), who is a minor, by and through his guardian ad litem Judith Hernandez (Hernandez) filed this action against a hospital and medical doctors who treated him after a traumatic motor-vehicle collision. Plaintiff alleges that Eric Salinger, M.D. (Dr. Salinger) and other medical care providers failed to timely recognize and treat a serious vascular injury, causing catastrophic and permanent injuries. The accident occurred on March 4, 2022, and will be referred to as the March 4, 2022 Collision.

On January 10, 2025, Dr. Salinger filed a cross-complaint against Hernandez for Indemnification, Apportionment of Fault; Declaratory Relief; and Negligence. Dr. Salinger alleges that Hernandez, who was driving with Plaintiff in the backseat, violated traffic safety laws by exceeding the posted speed limit, traveling through a red light, and failing to secure Plaintiff in a child passenger restraint system. (Cross-Complaint, ¶¶ 11-14.)

Dr. Salinger served a business records deposition subpoena on Hernandez's automobile insurance company seeking the following:

A certified copy of YOUR ENTIRE FILE/ANY AND ALL, claim files concerning any claims made by or on behalf of the aforementioned member including, but not limited to, the entire claim file/chart, personal injury protection file, medical bills, reports of treating and examining physicians, statements of claims, critical illness, disability, medical records, statements of payouts, payout sheets, correspondence, notes, documents, bills, claim forms, requests for coverage, denial of coverage, itemized listing of persons paid or making claims against insured, etc., concerning any settlement and/or documents concerning any payment to or on behalf of the listed member.

Before the Court is Plaintiff's motion to quash the subpoena on the grounds it is overbroad, seeks irrelevant documents, and violates Plaintiff's and Hernandez's rights of privacy. Plaintiff's attorney submits evidence that he met and conferred with Dr. Salinger's counsel and offered to agree to a subpoena limited to insurance coverage and payments related to the March 4, 2022 Collision but Plaintiff refused to limit the subpoena. (Declaration of Jeremy M. Dobbins (mistitled Declaration of Kathleen Salyer), ¶¶ 4-6.)

In opposition to the motion, Dr. Salinger contends the insurance file has relevant evidence and that records relating to other accidents involving Ms. Hernandez are discoverable.

1. Legal Standard Motion to Quash Subpoena

Code of Civil Procedure section 1987.1(a) provides that if a subpoena requires the production of documents, electronically stored information, or other things, the court “may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.”

2. Discussion

Evidence Code section 1101, subdivision (a) provides, “[e]xcept as provided in this section and in Sections 1102, 1103, 1108, and 1109, evidence of a person’s character or a trait of his or her character (whether in the form of an opinion, evidence of reputation, or **evidence of specific instances of his or her conduct**) is inadmissible when offered to prove his or her conduct on a specified occasion.” (Emphasis added.) Subdivision (b) provides, “[n]othing in this section prohibits the admission of evidence that a person committed a crime, civil wrong, or other act when relevant to prove some fact (such as motive, opportunity, intent, preparation, plan, knowledge, identity, absence of mistake or accident, ...”

Evidence of other vehicle accidents involving Hernandez appears to constitute prohibited character evidence. Dr. Salinger argues that the insurance file might have evidence that Hernandez has been in other collisions involving her children “which could bear on issues of credibility, notice, foreseeability, and knowledge of safety obligations, particularly where the alleged negligence involves failure to comply with well-established child passenger safety laws.” (Opposition, p. 6, lns. 19-25.) He cites no supporting legal authority. Nor does he present evidence that Hernandez has been involved in other accidents with children in her car.

In short, Dr. Salinger provides no explanation of how the insurance file bears on Hernandez’s credibility, notice, foreseeability, and knowledge of safety obligations. For example, he provides no evidence that Hernandez denies, or claims she did not know of, her obligation to drive within the speed limit, stop at a red light, and use a child restraint.

In addition to asserting Hernandez’s privacy rights as a reason to quash the subpoena Plaintiff points out that third party information may exist in the file as well as completely irrelevant matter.¹ Even where insurance documents specific to the subject of an action are discoverable, financial and personal information in the insured’s application for insurance is not. (*Irvington-Moore, Inc. v. Superior Court* (1993) 14 Cal.App.4th 733, 742-43.) The subpoena is overbroad in that it has no limits as to time or scope. While documents related to the March 4, 2022 Collision are

¹ A litigant may assert the privacy rights of a third party where the litigant’s interests align with the third party’s and those rights are likely to be harmed if not asserted. (*County of Los Angeles v. Superior Court* (2021) 65 Cal.App.5th 621, 635.) Plaintiff’s and his mother Hernandez’s interests are aligned and properly raised by Plaintiff.

discoverable, the entirety of Hernandez's insurance file is not. Given the overbreadth of the subpoena Plaintiff's and Hernandez's privacy rights are at issue.

Plaintiff seeks to limit the subpoena to only insurance coverage and payments related to the March 4, 2022 Collision. This is too narrow. Although documents such as collision reports and Plaintiff's medical records related to the March 4, 2022 Collision may be available from other sources all documents in the insurance file related to the March 4, 2022 Collision are discoverable. Plaintiff concedes that appropriate limitations for the subpoena are (1) policy declarations and coverage terms in effect on March 4, 2022; (2) nonprivileged documents identifying payments made in connection with the March 4, 2022, collision; and (3) nonprivileged accident specific documents. (See, Opposition, p. 7, ln. 17-p. 8, ln. 2.)

3. Ruling

Plaintiff's request to quash the subpoena is denied but the request to modify the subpoena is granted. The subpoena is limited to seeking (1) policy declarations and coverage terms in effect on March 4, 2022; (2) nonprivileged documents identifying payments made in connection with the March 4, 2022, Collision; (3) nonprivileged documents related to the March 4, 2022 Collision. Any redactions made or documents withheld to protect rights, privileges, or confidentiality must be sufficiently described in a privilege log.²

² Plaintiff did not request sanctions in his notice of motion and in his reply expressly withdrew any such request. (Reply, p. 8, lns. 6-11.)